

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-19

PELOTON INTERACTIVE, INC.,
COMPLAINANT,

v.

FLEXPORT INTERNATIONAL LLC,
RESPONDENT.

JOINT STATUS REPORT

Pursuant to the February 19, 2025 Second Amended Scheduling Order (“February 19 Order”), Complainant, Peloton Interactive, Inc. (“Peloton”) and Respondent, Flexport International LLC (“Flexport”) (each a “Party” and collectively the “Parties”), submit this Joint Status Report to describe the status of mediation.

Mediation: On March 5, 2025, the Parties in the above captioned proceeding participated in a full-day mediation with private mediator Robert S. Glenn, Esq. The Parties made progress following the first mediation handled by CADRS but ultimately, were unable to reach a resolution. No further mediation session has been scheduled, though the possibility has been raised following the fact deposition phase.

Depositions. The Parties jointly agreed to move depositions until after the mediation in the event the Parties were able to settle the dispute. However, as noted above, the Parties were unable to reach a resolution. Consequently, they are proceeding with fact depositions. The Parties

have conferred and plan to commence depositions the week of March 17, 2025, concluding by March 28, 2025. For the week of March 17 depositions have been scheduled, and the Parties are coordinating depositions the week of March 24.

Dated: March 11, 2025

Respectfully Submitted,

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